



GENERAL CONSTRUCTION PERMIT

Oil and Gas Industry

Produced Water Storage Tank Batteries

Permit Number GP05 Issuance 5

Final Approval

July 23, 2025

Bradley Eades, PE

Date Issued

Oil & Gas Permitting Section Supervisor

Table of Contents

I.	General Permit Applicability	2
II.	Operating Terms and Conditions.....	4
III.	Alternative Operating Scenario (AOS)	8
IV.	Operating and Maintenance Plan	9
V.	Recordkeeping and Reporting.....	13
VI.	Additional Requirements for Sources located in an Ozone Non-Attainment Area	15

VII.	Monitoring Requirements for Facilities located in Disproportionately Impacted (DI) Communities	18
IX.	General Permit Terms and Administration.....	19
X.	Additional Requirements	24

Note: See the Oil &, Gas Produced Water Tank Batteries Regulatory Definitions and Permitting Guidance document (PS Memo 09-02) and the Emission Calculation Manual for further information on definitions, and emission calculation guidelines.

I. General Permit Applicability

I.A. Qualified Sources: The owner or operator of any oil and gas industry (exploration and production (E&P), non-E&P, midstream and downstream) operation that can comply with all of the operating conditions described in Section II of this permit and meet all of the requirements in this Section may register for this general permit. This general permit covers the following:

- I.A.1. Produced water storage tank batteries comprised of a single storage tank or a group of storage tanks used for the storage of produced water.
- I.A.2. Combustion devices, vapor recovery units, or other Division-approved control equipment used to reduce emissions by at least 95%.
- I.A.3. Equipment as described in condition I.A.1 and I.A.2 located at a true minor source or synthetic minor source for Operating Permit (OP), New Source Review (NSR), and Maximum Achievable Control Technology (MACT) program applicability, except as provided for in I.B., I.C., and I.D. below.



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- I.B. Stationary Sources that became subject to Title V Operating Permit requirements or became classified as an existing major stationary source which a complete GP05 registration request was received by the Division prior to the effective date (January 27, 2020) on which the 8-hour Ozone Control Area was re-classified, from moderate to serious may continue to operate under this General Permit. 8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024).
- I.C. Stationary Sources that: a) became subject to Title V Operating Permit requirements or became classified as an existing major stationary source due to the reclassification of the 8-hour Ozone Control Area from serious to severe, and b) for which a complete GP05 registration request was received by the Division prior to the effective date of GP05, Issuance 4 (November 3, 2022), may continue to operate under this General Permit. 8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024).
- I.D. Stationary Sources that: a) became subject to Title V Operating Permit requirements or became classified as an existing major stationary source for which a GP05 registration request was deemed complete by the Division prior to the effective date (July 24, 2024) on which Northern Weld County was re-classified from moderate to serious may continue to operate under this General Permit. Northern Weld County is as defined in Regulation Number 7, Part A, Section II.A.3. (Adopted 12/14/2023, Effective 02/14/2024).
- I.E. This general permit applies only to the equipment as described in Section I.A. above having uncontrolled actual emissions of Sulfur Oxides (SO_x), Particulate Matter (PM), Particulate Matter 2.5 (PM_{2.5}), and Particulate

Matter 10 (PM₁₀) less than the APEN reporting thresholds for each pollutant in Regulation Number 3, Part A, Section II.D.1.a.

I.F. Excluded Sources: The following sources may not register for this general permit:

- I.F.1. Equipment subject to a New Source Performance Standard (NSPS) other than NSPS Subpart OOOO, OOOOa, and OOOOb - Standards of Performance for Crude Oil and Natural Gas Facilities.
- I.F.2. This general permit applies only to the equipment as described in Section I.A. above. Other equipment at the same stationary source must be permitted separately as required by Regulation Number 3, Part B.
- I.F.3. Newly constructed or modified existing equipment that is part of a project permit action that is subject to Non-Attainment New Source Review (NA NSR) or Prevention of Significant Deterioration (PSD) permitting under Regulation Number 3, Part D.

II. Operating Terms and Conditions

II.A. Emission Limitations Specific to Tanks Registered Under This General Permit

- II.A.1. Combined maximum allowable controlled emissions of the following air pollutants from all produced water tank batteries that are owned or operated by the same person and co-located at the same stationary source must not exceed the following limitations (Reference: Regulation Number 3, Part B, Section II.A.4.):

II.A.1.a. For facilities located outside the boundaries of an ozone nonattainment area (Regulation Number 7, Part A, Section II.A.1):

Volatile Organic Compounds: 10.0 tons per year



II.A.1.b. For facilities located within the boundaries of an ozone nonattainment area (for reclassifications of an existing nonattainment area, the limit applies for the existing classification until the effective date of reclassification):

II.A.1.b.(i) For facilities located within an ozone nonattainment area which is classified as Marginal or Moderate:

Volatile Organic Compounds: 10.0 tons per year

II.A.1.b.(ii) For facilities located within an ozone nonattainment area which is classified as Serious or Severe:

Volatile Organic Compounds: 3.0 tons per year

II.A.2. For new or modified registrations deemed complete on or after the effective date of this permit issuance (Issuance 5), the maximum allowable emissions of nitrogen oxides (NO_x) and carbon monoxide (CO) from all tank batteries and control of emissions from all tank batteries under the GP05 registration that are owned and operated by the same person and co-located at the same stationary source must not exceed the requested annual emission limitations (tons per year) as listed on the general permit registration approval letter, or if an approval letter has not been issued, as certified by the owner or operator in the APEN included with the general permit registration APEN (Regulation Number 3, Part B, Sections II.A.4. and II.A.7.)

II.B. Facility-Wide Emission Limitation Requirements

II.B.1. The owner or operator not subject to Conditions I.B. or I.C. or I.D. of this permit must track potential emissions from all insignificant activities at the facility on an annual basis to demonstrate compliance with the facility emission limitations indicated below. An inventory of



each insignificant activity and associated emission calculations must be made available to the Division for inspection upon request. For the purposes of this condition, insignificant activities are defined as any activity or equipment, which emits any amount but does not require an APEN or is permit exempt. Note that for reclassifications of an existing nonattainment area, the limit applies for the existing classification until the effective date of reclassification. (Regulation Number 3, Part B. Section III.E.)

II.B.1.a. Facilities located in an area classified as attainment, marginal nonattainment, or moderate nonattainment for all pollutants, total potential point source emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC): 100 tons per year

Nitrogen Oxides (NO_x): 100 tons per year

Carbon Monoxide (CO): 100 tons per year

II.B.1.b. Facilities located in an area classified as serious nonattainment for ozone, total potential point source emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC): 50 tons per year

Nitrogen Oxides (NO_x): 50 tons per year

Carbon Monoxide (CO): 100 tons per year

II.B.1.c. Facilities located in an area classified as severe nonattainment for ozone, total potential point source emissions from the



facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC): 25 tons per year

Nitrogen Oxides (NO_x): 25 tons per year

Carbon Monoxide (CO): 100 tons per year

- II.B.2. Combined maximum allowable controlled emissions of hazardous air pollutant(s) (HAPs) from all equipment at the same stationary source must not exceed the following limitations
(Reference: Regulation Number 3, Part B, Section II.A.4.):

Each Individual HAP: 8.0 tons per year

Total of all HAPs: 20.0 tons per year

- II.B.3. A control device may be used to comply with these emission limits.

II.C. General Operating Conditions

- II.C.1. This source is subject to the odor requirements of Regulation Number 2.

- II.C.2. The ten digit AIRS ID number assigned by the Division (e.g. 123/1234/001) must be marked on the subject equipment for ease of identification. The permit number (i.e. GP05) must be marked on equipment newly registered and deemed complete on or after the issuance date of Issuance 5 of this general permit (Reference: Regulation Number 3, Part B, Section III.E.)

- II.C.3. The owner or operator must comply with opacity requirements in Regulation Number 1, Section II.A., as applicable per the most current version of Regulation Number 1.

II.C.4. The owner or operator must follow the Operating and Maintenance / Recordkeeping and Reporting specified in Sections IV and V. (Reference: Regulation Number 3, Part B, Section III.I.6.)

II.C.5. This source's produced water throughput must be limited by the emission limits specified in this permit, and all other activities, operational parameters and numbers of equipment as stated in the registration. (Reference: Regulation Number 3, Part B, Section II.A.4.)

II.D. Statewide Emissions Control Requirements for Produced Water Tanks

II.D.1. The owner or operator may be subject to emission control, auto igniter, operate without venting, storage tank emissions management (STEM) plan, performance testing, metering, reporting, and recordkeeping requirements contained in Regulation Number 7, Part B, Section II.B and Section II.C.

III. Alternative Operating Scenario (AOS)

III.A. Provided that there are no emissions increases, and the emission limits set forth in Section II.A. and Section II.B. are still met, the owner or operator may invoke an AOS for the following changes to an existing tank battery registered under the general permit without modifying the general permit registration:

- Replacement of an existing control device by control equipment of the same make, model and no changes to the configuration that will impact a dispersion model analysis; or
- Replacement of a storage vessel with another storage vessel of the same type, dimensions, and physical characteristics (e.g., same design, same color, same construction material) and no



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changes to the configuration that will impact a dispersion analysis; or

- Replacement of a separator with another separator of the same type, dimensions, and physical characteristics (e.g., same design) with no changes to the configuration that will impact a dispersion analysis.

III.B. The owner or operator must maintain a log to contemporaneously record the date and description of any change made under the provisions of this AOS. (Reference: Regulation Number 3, Part A, Section IV.A.1.)

III.C. The following changes are not considered modifications. These changes should be reflected in any revised APEN required by Condition VIII.C.1.

- Removal of a well serviced by the storage tank with no increase to permitted emissions rates and no changes to the configuration that will impact a dispersion analysis;
- Re-piping of an existing well with no increase to permitted emissions rates and no changes to the configuration that will impact a dispersion analysis;
- Routine equipment maintenance, repair and replacement, except as otherwise listed in Condition III.A., with no increase to permitted emissions rates and no changes to the configuration that will impact a dispersion analysis

IV. Operating and Maintenance Plan

IV.A. Combustion devices operated to control emissions authorized by this permit must be enclosed; have no visible emissions during normal operations, as defined under Regulation Number 7, Part B, Section II.A.45; and be



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designed so that an observer can, by means of visual observation from the outside of the combustion device, or by other convenient means approved by the Division, determine whether the combustion device is operating properly. This combustion device must be equipped with an operational auto-igniter according to the schedule in Regulation Number 7, Part B, Section II.B.2.d. (Reference: Regulation Number 7, Part B, Sections II.B.2.b. and II.B.2.d., effective 02/14/2024).

IV.B. If a control device is used to comply with the emission limits in Section II.A. of this permit the following conditions must be met:

IV.B.1. Leakage of VOCs to the atmosphere must be minimized as follows:

IV.B.1.a. Thief hatch seals must be inspected for integrity at least annually, or as otherwise specified in Regulation Number 7, Part B, Section II.C., and replaced as necessary. Thief hatch covers must be weighted and properly sealed.

IV.B.1.b. Pressure relief valves (PRV) must be inspected for proper operation at least annually, or as otherwise specified in Regulation Number 7, Part B, Section II.C., and replaced as necessary. PRVs must be set to release at a pressure that will ensure flashing, working and breathing losses are routed to the control device under normal operating conditions.

IV.B.1.c. Inspections of thief hatches and PRVs must be documented with an indication of status, a description of any problems found, and their resolution.

IV.B.2. Control devices must be adequately designed, and operated and maintained according to manufacturer specifications to achieve a control efficiency of at least 95%, and to handle reasonably foreseeable



fluctuations in emissions of VOCs. Fluctuations in emissions that occur when the separator dumps into the tank are reasonably foreseeable.

IV.B.3. All produced water collection, storage, processing and handling operations, regardless of size, must be designed, operated and maintained so as to minimize leakage of volatile organic compounds to the atmosphere to the maximum extent practicable.

IV.B.4. The owner or operator must commence monitoring the pilot light/auto-igniter and visible emissions observation and document the proper operation of the control device based on the monitoring frequency in Table 1.

Table 1: Monitoring Frequencies

Effective Date of Registration¹	Classification	Permitted VOC Emissions	Monitoring Frequency
Prior to Issuance 5	Any	Any	Weekly
On or after Issuance 5	Attainment	Less than 80 TPY	Weekly
On or after Issuance 5	Attainment	Greater than or equal to	Daily

¹ The Effective Date of Registration is the date that the registration request was granted conditional certification per Condition VIII.F.1.



Effective Date of Registration ¹	Classification	Permitted VOC Emissions	Monitoring Frequency
		80 TPY	
On or after Issuance 5	Marginal/Moderate Ozone Non-Attainment	Less than 80 TPY	Weekly
On or after Issuance 5	Marginal/Moderate Ozone Non-Attainment	Greater than or equal to 80 TPY	Daily
On or after Issuance 5	Serious Ozone Non-Attainment	Less than 40 TPY	Weekly
On or after Issuance 5	Serious Ozone Non-Attainment	Greater than or equal to 40 TPY	Daily
On or after Issuance 5	Severe Ozone Non-Attainment	Less than 15 TPY	Weekly
On or after Issuance 5	Severe Ozone Non-Attainment	Greater than or equal to	Daily



Effective Date of Registration ¹	Classification	Permitted VOC Emissions	Monitoring Frequency
		15 TPY	

Time intervals for monitoring proper operation of a control device may be shorter if required under Regulation Number 7, Part B, Section I or Section II. Indications of improper operation for a control device include, but are not limited to, absence of auto-igniter or pilot light, malfunction of electronic ignition, valves for piping of pilot gas or waste gas to the control device not being open and/or presence of smoke. A check box is suitable for recording proper operation. Improper operation of a control device must be further documented with a description of the problem and its resolution, the date range the control was inoperable, and the production through the battery during the downtime. Inspections can be done by either visible observation or other means approved by the Division. During control device downtime, emissions must be considered to be uncontrolled.

V. Recordkeeping and Reporting

V.A. Records may be kept in either electronic format or hard copy provided that they can be promptly supplied to the Division upon its request. All records must be retained for a period of five years.

V.B. For all tank batteries, the following records must be maintained on site or at a local field office with site responsibility for Division review:

V.B.1. The current issuance of this general construction permit.



- V.B.2. The most recently submitted APEN and any required site-specific emission factor documentation.
- V.B.3. The general permit registration approval letter (once issued).
- V.B.4. Records of installation dates for each individual storage vessel installed.
- V.B.5. Records that clearly demonstrate compliance with the emission limits of this permit. This must include the most currently available produced water production records necessary to calculate emissions in accordance with this Condition V.B.4. and documentation of all periods of control device downtime for sources where a control device is required to comply with emission limits of Section II.A. of this permit.
 - V.B.5.a. For sources located at a true minor facility, compliance with the emission limits in Section II.A. and Section II.B. must be determined by calculating the annual emissions from each emission unit for the calendar year.
 - V.B.5.b. For sources located at a synthetic minor or major facilities, compliance with the emission limits in Section II.A. and Section II.B. must be determined by recording the annual emissions from each emission unit on a rolling 12-month total. By the end of each month a new 12-month total is calculated based on the previous 12 months' data. During the first year of operation, compliance must be assumed providing that cumulative emissions from all months of operation do not exceed the emission limits in Section II.A.
- V.B.6. Records required by Conditions III.B. (AOS), IV.B.1.c. (Annual tank inspections) and IV.B.4. (Control device monitoring).

V.B.7. On or before June 30th of each calendar year, the owner or operator of oil and natural gas operations and equipment at or upstream of a natural gas processing plant or class II disposal well facilities in Colorado must submit a single annual report that includes actual emissions and specified information in the Division-approved report format. The information included in the annual report must be in accordance with the general reporting requirements of Regulation Number 7, Part B, Section V.B. Each calendar year, owners or operators must maintain the information according to Regulation Number 7, Part B, Section V.C. for inclusion in the annual report. (Regulation Number 7, Part B, Section V)

VI. Additional Requirements for Sources located in an Ozone Non-Attainment Area

VI.A. This Section VI only applies to facilities located in an Ozone Non-Attainment Area. (Reference: Regulation Number 7, Part B, Section I.A.1)

VI.B. The owner or operator may be subject to emission control, monitoring, performance testing, and recordkeeping and reporting requirements contained in Regulation Number 7, Part B, Section I.C., Section I.D. and Section I.F.

VI.C. Control devices used to comply with Regulation Number 7, Part B, Sections I.D.3. and II.D.2. must be a combustion device or a vapor recovery unit and must meet all requirements of Regulation Number 7, Part B, Section I.C.1. and II.B.2. Alternative control equipment must be approved via an individual permit as required by Regulation Number 7, Part B, Section I.D.4. or II.B.2.e.

VI.D. At the frequency specified in Table 2, the owner or operator of storage tanks utilizing site-specific emission factors must complete site-specific sampling as necessary to develop site-specific emission factors. Periodic

site-specific sampling must be conducted at a minimum of one hundred and eighty (180) days apart. Sampling and analysis must be in accordance with Division-approved methods and, where flash is expected, the sample must be obtained from the outlet of separation equipment immediately prior to the storage tank, where technically feasible. Results of the analysis must be used to calculate site-specific emissions factors for VOC (in units of lb/bbl hydrocarbon liquid throughput) using Division-approved methods. The total calculated emission factors must include all flash, working and breathing emissions. Results of the analysis must be used to demonstrate that the VOC emission factor established through the analysis is less than or equal to, the emission factor submitted with the GP05 registration and established on the APEN for this emissions point. If the VOC site-specific emission factor developed through this analysis is greater than the emission factor submitted with the GP05 registration and established on the most recently submitted APEN for this emissions point, the operator must submit to the Division within 90 days, or in a timeframe as agreed to by the Division, a modification to address this inaccuracy. Records of periodic site-specific sampling must be maintained by the owner or operator for a minimum of five (5) years and made available to the Division for inspection upon request.

Table 2: Sampling Frequencies

Effective Date of Registration²	Classification	Permitted VOC Emissions	Frequency
Prior to	Any	Any	Every 5

² The Effective Date of Registration is the date that the registration request was granted conditional certification per Condition VIII.F.1.



Effective Date of Registration²	Classification	Permitted VOC Emissions	Frequency
Issuance 5			years
On or after Issuance 5	Marginal/Moderate Ozone Non-Attainment	Less than 90 TPY	Every 5 years
On or after Issuance 5	Marginal/Moderate Ozone Non-Attainment	Greater than or equal to 90 TPY	Annually
On or after Issuance 5	Serious Ozone Non-Attainment	Less than 40 TPY	Every 5 years
On or after Issuance 5	Serious Ozone Non-Attainment	Greater than or equal to 40 TPY	Annually
On or after Issuance 5	Severe Ozone Non-Attainment	Less than 15 TPY	Every 5 years
On or after	Severe Ozone Non-	Greater	Annually



Effective Date of Registration ²	Classification	Permitted VOC Emissions	Frequency
Issuance 5	Attainment	than or equal to 15 TPY	

VII. Monitoring Requirements for Facilities located in Disproportionately Impacted (DI) Communities

VII.A. Owners or operators of new or modified sources located in Disproportionately Impacted Communities must submit a notification at the time of registration for a general permit or permits issued pursuant to Regulation Number 3, Part B, Section III.I. indicating the source will comply with the monitoring requirements outlined in Regulation Number 3, Part B, Section III.J., as applicable, by either:

- VII.A.1. Complying with source-specific monitoring pursuant to Section III.J.2. of Part B;
- VII.A.2. Paying community monitoring fees pursuant to Section III.J.3. of Part B; or
- VII.A.3. Complying with well production facility monitoring pursuant to Section III.J.4. of Part B.

Owners or operators must comply with the monitoring methodology selected on the general permit registration form.

VII.B. Owners or operators subject to VII.A.1 must submit a Division-approved source-specific monitoring plan as part of a complete registration request. (Regulation Number 3, Part B, III.E.)

VIII. General Permit Terms and Administration

VIII.A. A facility that is classified as a major source for Title V Operating Permit requirements and is operating under Condition I.A.4 or I.A.5. must submit a Title V application requesting to incorporate the terms of this general permit into a Title V Operating Permit. The due date for this application is one year from the date on which the facility becomes subject to Title V Operating Permit requirements.

VIII.B. In accordance with Colorado Regulation Number 3, Part C, Section V.C.5, some or all of the monitoring specified in this general permit will be incorporated as specific conditions in the source's Title V Operating Permit (if applicable). Additional monitoring not listed in this general permit may be included in the source's Operating Permit in order to satisfy the periodic monitoring requirements of Section V.C.5.b.

VIII.C. General Terms

VIII.C.1. A revised APEN must be filed: (Reference: Regulation Number 3, Part A, Section II.C.)

VIII.C.1.a. Annually by April 30th of the year following a significant increase in emissions as follows:

VIII.C.1.a.(i) For VOC, a change in actual emissions of five (5) tons per year or more, above the level reported on the last APEN;
or

VIII.C.1.a.(ii) For volatile organic compounds and nitrogen oxides sources in ozone non-attainment areas, a change in



annual actual emissions of one ton per year or more or five percent, whichever is greater, above the level reported on the last APEN submitted to the Division; or

VIII.C.1.a.(iii) For any non-criteria reportable pollutant, if the emissions increase by 50% or five (5) tons per year, whichever is less, above the level reported on the last APEN.

VIII.C.1.b. Whenever there is a change in the owner or operator of any facility, process, or activity; or

VIII.C.1.c. As required by the alternative operating scenario allowed by Section III; or,

VIII.C.1.d. No later than 30 days before the existing APEN expires.

VIII.C.2. The requirements of Colorado Regulation Number 3, Part D must apply at such time that any stationary source or modification becomes a major stationary source or major modification solely by virtue of a relaxation in any enforceable limitation that was established after August 7, 1980, on the capacity of the source or modification to otherwise emit a pollutant such as a restriction on hours of operation (Colorado Regulation Number 3, Part D, Sections VI.B.4 and/or V.A.7.b).

VIII.C.3. Sources covered by this General Permit are subject to the Common Provisions Regulation Part II, Subpart E, Upset Conditions and Breakdowns. The owner or operator must notify the Division of any upset condition which causes a violation of any emission limit or limits stated in this permit as soon as possible, but no later than noon of the Division's next working day, followed by written notice to the Division explaining the cause of the occurrence and that proper action has been or is being taken to correct the conditions causing said violation and to prevent such excess emission in the future.



- VIII.C.4. This permit is granted subject to all rules and regulations of the Colorado Air Quality Control Commission and the Colorado Air Pollution Prevention And Control Act C.R.S., sections 25-7-101, et seq, to those general and specific terms and conditions included in this document.
- VIII.C.5. Unless specifically stated otherwise, the general and specific conditions contained in this permit have been determined by the Division to be necessary to assure compliance with the provisions of Section 25-7-114.5(7)(a), C.R.S.
- VIII.C.6. Each and every condition of this permit is a material part hereof and is not severable. Any challenge to or appeal of a condition herein by the permittee will constitute a rejection of the entire permit and upon such occurrence, this permit must be deemed denied ab initio.
- VIII.C.7. Section 25-7-114.7(2)(a), C.R.S. requires that all sources required to file an Air Pollution Emission Notice (APEN) must pay an annual fee to cover the costs of inspections and administration.
- VIII.C.8. Violation of the terms of a permit or of the provisions of the Colorado Air Pollution Prevention and Control Act or the regulations of the AQCC may result in administrative, civil or criminal enforcement actions under Sections 25-7-115 (enforcement), -121 (injunctions), -122 (civil penalties), -122.1 (criminal penalties), C.R.S.
- VIII.C.9. Registration under this permit is approved in reliance upon the accuracy and completeness of information supplied by the applicant and is conditioned upon operation of the source, in accordance with this information and with representations made by the applicant or applicant's agents. It is valid only for the equipment and operations or activity specifically identified on the general permit registration.
- VIII.D. Registration Revision / Termination



- VIII.D.1. The Division may deny or revoke registration under the general permit under the circumstances specified in Regulation Number 3, Part B, Section III.I.3.c.
- VIII.D.2. A registration under this general permit may be reissued to a new owner or in a new company name by the Division as provided in Regulation Number 3, Part B, Section II.B. upon a request for transfer of ownership or company name change and the submittal of a revised APEN and the required fees.
- VIII.D.3. Registration under this general permit is voluntary. The owner or operator may withdraw or cancel a registration under this general permit at any time by notifying the Division in writing.

VIII.E. General Permit Revision / Termination

- VIII.E.1. This general permit remains in effect until revised or terminated by the Division in accordance with the provisions of Regulation Number 3.
- VIII.E.2. After public notice and comment as provided by Regulation Number 3, Part B, Section III.I.7., the Division may revise this general permit in order to add or delete requirements or limitations to the permit. This public notice must be conducted in a manner consistent with the provisions of Regulation Number 3, Part B, Section III.C.4.
- VIII.E.3. If a revised general permit is issued by the Division, any existing registration to use the general permit will be automatically converted to a registration to use the revised general permit, and the owner or operator is subject to requirements of the revised general permit. Persons not wishing to continue coverage under the revised general permit have the option of applying for an individual permit as required by Regulation Number 3, Part B.



VIII.E.4. If the Division terminates this general permit, it will provide written notice to affected registrants prior to the termination of the general permit. The notice will advise registrants that they must apply for an individual permit as required by Regulation Number 3, Part B.

VIII.E.5. The Division may require any source authorized by a general construction permit to apply for and obtain an individual permit if circumstances have changed since the time of the original general permit application so that the source is no longer appropriately controlled and/or permitted under the general construction permit. (Reference: Regulation Number 3, Part B, Section III.I.3.c.(i)(B)

VIII.F. General Permit Registration Approval Process

VIII.F.1. Conditional certification of a registration under this general permit is effective from the date the registration is deemed complete as indicated in Condition VIII.F.2. A complete registration request consists of all General Permit application materials required by the Division and associated fees. The owner or operator may commence construction and operation of the storage tank(s) as represented in the registration once the registration is deemed complete. In the event the storage tank(s) does not qualify for registration under the general permit the owner or operator accepts the liability of commencing these activities.

VIII.F.2. The Division will determine completeness of the General Permit registration request within sixty (60) days of the date of receipt of the request and provide written notification to the applicant. If the applicant does not receive notification of a completeness determination from the Division within sixty (60) days, the General Permit registration request must be deemed complete for the purpose of Conditions VIII.F.1. and VIII.F.2.

VIII.F.3. The Division has ninety (90) calendar days from the date the Division receives a complete General Permit registration request to provide the applicant with a written approval or denial of the registration.

IX. Additional Requirements

IX.A. Produced water storage tanks subject to 40 CFR Part 60, NSPS Subpart 0000, 0000a, or 0000b - Standards of Performance for Crude Oil and Natural Gas Facilities must comply with all applicable requirements of that subpart including, but not limited to, emissions standards, testing, notification, monitoring, records and reporting.

IX.B. The owner or operator must maintain documentation clearly outlining applicable requirements of New Source Performance Standard (NSPS) Subpart 0000, 0000a, or 0000b - Standards of Performance for Crude Oil and Natural Gas Facilities for the produced water storage tank battery registered under this general permit. The documentation must be located on-site or at a local field office with stationary source responsibility. Records may be kept in either electronic or hard copy format provided that they can be promptly supplied to the Division upon request.

Permit History

Issuance	Date	Description
Issuance 1	28 September 2009	Initial issuance
Issuance 2	15 May 2013	Revised



Issuance	Date	Description
Issuance 3	24 January 2020	Revised to address the Denver ozone nonattainment area re-classification from moderate to serious
Issuance 4	3 November 2022	Revised to address the 8-hour Ozone Control Area re-classification from serious to severe for existing registrations
Issuance 5	This Issuance	- Revised to address: Revised to address Northern Weld County Area re-classification from moderate to serious for existing registrations. - Changes to the structure of AQCC Regulation Number 7; and New emissions control, reporting, recordkeeping, performance testing, training, operating, and monitoring requirements



Issuance	Date	Description
		from AQCC Regulation Number 7. • Modification to the AOS provisions • Updates to Operating and Maintenance requirements • Addition of facility-wide limits for other criteria pollutants • April 8, 2026 - Typographical correction to Table 2. Corrected references from “On or after Issuance 4” to “On or after Issuance 5”